While Article 9 uses the words ‘main forms of civilization’, Article 38(1)(c) uses the term ‘civilized nations’. Given that these terms have been used in the context of an international legal instrument that applies to an international court set up under the aegis of the United Nations, these terms must be attributed specific meanings and cannot be used or interpreted loosely. Article 38 has been typically understood as enumerating the ‘sources’ of international law. However, scholars agree that these ‘sources’ themselves are the product of the Western civilisation. In fact, they believe that international law is ‘a living artifact’ of the Western civilisation, or more specifically the ‘Westphalian civilisation’, since this politico-theological framework of civilisation was universalised through its imposition on the rest of the world by Europe and the United States under the garb of ‘international law’.[22] Therefore, it can be reasonably contended that international law itself is a denouement as well as a tool of coloniality since colonies were faced with no other option but to adopt Eurocentric/Western ideas, norms and institutions.

Scholars agree that the sources alluded to in Article 38(1) were the result of the application of the ‘Standard of Civilization’ (SOC) by the West to bestow upon societies the status of ‘civilised nations’, which were expected to observe and abide by the rules laid down as ‘international law’.[23] Importantly, the more practical and less lofty reason for the growth of international law was Europe’s need to transact with non-European societies wherein the SOC was employed as an organising principle. It ensured that business was conducted within a Eurocentric framework in order to protect the citizens of the West and Western ideas of ‘universal rights/freedoms’. Those that agreed to comply with the framework by recognising the said rights and freedoms were deemed worthy of being accorded the status of ‘civilised nations’. Interestingly, the expectation was not limited to the application of the SOC framework to Westerners in the non-West; instead, non-Western societies were expected to re-order themselves on the same lines as European Westphalian States, which meant that the change was not merely external but also deeply internal to the non-West. The following were some of the specific changes expected of the non-West by the West[24]:

1. Those rights and freedoms that were guaranteed to citizens of the West in their nation-states were expected to be recognised and available to them in the non-West;